ARRANGEMENT OF SECTIONS

*Section*

1. Title.
2. Application.
3. Interpretation.
4. Control of livestock marketing and movement.
5. Movement of livestock.
6. Stray stock.
7. Offences and penalties.

FIRST SCHEDULE: Fees.

SECOND SCHEDULE: Penalties.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

*Title*

1. These by-laws may be cited as City of Masvingo (Control of Livestock) By-laws, 2025.

*Application*

2. These by-laws shall apply within the council area.

*Interpretation*

3. In these by-laws—

"Council" means City of Masvingo;

"large stock" means cattle, horses, donkeys, mules and any animals or birds;

"levy" means any charge imposed by the Council;

"livestock" means domesticated animals which include large stock and small stock;



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"owner", in relation to livestock, means the person who has lawful custody or control of the livestock;

"private livestock buyer" means any person who is buying livestock outside the publicly organised livestock sales;

"small stock" means goats, sheep and pigs and any animals or birds.

*Control of livestock marketing and movement*

4. (1) No person shall buy or sell livestock for commercial purposes—

(a) without a permit from council; or

(b) except at a livestock sale organised by the council.

(2) At all livestock sales, whether privately organised or organised by a local authority, a cattle levy of 10 *per centum* of the price of each animal sold, shall be collected from every buyer of livestock and the levy shall be distributed as determined by Council.

*Movement of livestock*

5. (1) No person shall move livestock from council area to another council area without clearance from Police and Veterinary Office.

(2) No person shall approach the Veterinary Office without a supporting letter from the Council for livestock movement.

(3) In the case of cattle being moved outside the council area or for slaughter, the council shall issue a supporting letter in support of the request before the veterinary services department issues such movement permit.

(4) Council shall refuse to issue a supporting letter if there is evidence that the objective of removal of livestock from the council area is for the purpose of evading levies or marketing fees arising from organised livestock sales.

*Stray stock*

6. (1) Any person, who finds a stray stock shall act in terms of section 16 of the Stock Trespass Act [*Chapter 19:14*].

(2) Any stray stock shall be impounded by the council.

(3) Any livestock found straying within rural district area shall be impounded by the council.

(4) Any person who intends to claim the impounded stock in terms of subsections 1, 2 and 3 shall be charged a penalty prescribed by council.

(5) Any unclaimed stock shall be auctioned in terms of the Stock Trespass Act [*Chapter 19:14*].

(6) Any person, whether an inhabitant or otherwise, who within the area regulated by these by-laws—

(a) dehorns or castrates any stray stock he or she held without having reported to the poundmaster;

(b) whose livestock is found in service or business areas;

shall be liable to a fine specified in the Second Schedule.

*Offences and penalties*

7. Any person who contravenes any provision of these by-laws shall be guilty of an offence and liable to a fine specified in the Second Schedule.

FIRST SCHEDULE

FEES

| Section | Description | Fee (USD) |
|---|---|---|
| 4 | Application for permit to sell or buy livestock or de-pasture livestock | $10,00 |
| 4 | Keeping of livestock fees | 2,00 per animal |
| 5 | Support letter for livestock movement | $0,00 |

SECOND SCHEDULE

PENALTIES

| Section | Description | Penalty (US$) |
|---|---|---|
| 5 | Moving livestock without a supporting letter | $0,00 |
| 6 | A person who intends to claim the impounded stock | $10,00 per animal |

| Section | Description | Penalty (US$) |
|---|---|---|
| 6 | A person who dehorns or castrates any stray stock he or she held without having reported to the pound master | $0,00 |
| 6 | A person whose livestock is found in service or business areas (stray livestock) | $5,00 per animal |
| 6 | Movement of livestock on the hoof on roads or on Council land | $50,00 |

The fines and penalties are payable in local currency at the prevailing interbank rate.